

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/21/26      TIME: 1:30 P.M.      DEPT: A      CASE NO: CV0001019

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF:      TOVBA CONSTRUCTION,  
INC.

vs.

DEFENDANTS: ANDREY  
PONOMARCHUK, ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL ANSWERS TO INTERROGATORIES  
– DISCOVERY FACILITATOR PROGRAM

**RULING**

In order to expedite proceedings, the Court waives the requirement of facilitation in this matter. The unopposed motion of Defendant and Cross-Complainant Andrey Ponomarchuk (“Defendant”) to compel further responses is **GRANTED**. Plaintiff Tovba Construction, Inc. (“Plaintiff”) is ordered to provide further responses to Special Interrogatories No. 24 and 36 **within ten (10) days** notice of this Order.

Defendant’s request for sanctions is **GRANTED in part**. Defendant is awarded \$900 in reasonable attorney’s fees incurred in connection with the motion. Plaintiff shall pay this amount to counsel for Defendant **within twenty (20) days** notice of this Order.

*All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.*

*The Zoom appearance information for June 2026 is as follows:*

*<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>*

*Meeting ID: 160 526 7272*

*Passcode: 026935*

*If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/21/26      TIME: 1:30 P.M.      DEPT: A      CASE NO: CV0001387

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF:      PEDRO MIGUEL  
FERREIRA AGAPITO

vs.

DEFENDANTS: CALIFORNIA  
DEPARTMENT OF TRANSPORTATION, ET  
AL.

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

**RULING**

**Appearances required.**

Plaintiff failed to comply with the Court’s order of June 16, 2026 which was “to file his opposition papers and proof of service forthwith, and in any event **no later than June 24, 2026**. (Emphasis in original.)” To date, Plaintiff still has not filed the papers. The Court cannot review an opposition that has not been filed.

The Court understands that Plaintiff is now acting as his own attorney. However, self-represented litigants are required to follow the same procedural rules as represented parties. (See *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 984-985.) The Court hereby issues an **Order to Show Cause** to Plaintiff as to why sanctions should not be imposed on him for failing to comply with the Court’s order. Plaintiff is to appear at the hearing to respond to this order.

All parties must appear at the hearing to address how to proceed on the pending motion for summary judgment.

***All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.***